

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Giordano	Team: Team # 3	CCRB Case #: 200702224	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/10/2007 6:50 PM	Location of Incident: outside of § 87(2)(b)	Precinct: 69	18 Mo. SOL 8/10/2008	EO SOL 8/10/2008	
Date/Time CV Reported Tue, 02/13/2007 11:18 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/15/2007 4:13 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Dennis Ferber	00000	895430	069 PCT
2. POM Forrest Hirsch	05029	941905	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Dennis Ferber	Abuse: Lt. Dennis Ferber stopped § 87(2)(b)	§ 87(2)(b)
B.POM Forrest Hirsch	Abuse: PO Forrest Hirsch stopped § 87(2)(b)	§ 87(2)(b)
C.LT Dennis Ferber	Force: Lt. Dennis Ferber used physical force against § 87(2)(b)	§ 87(2)(b)
D.LT Dennis Ferber	Discourtesy: Lt. Dennis Ferber spoke obscenely to § 87(2)(b)	§ 87(2)(b)

Synopsis

§ 87(2)(b) filed this complaint on February 10, 2007 with the Internal Affairs Bureau (IAB) generating IAB log# 07-05868. On February 10, 2007 at 6:50 p.m., § 87(2)(b) was standing in front of his residence at § 87(2)(b) in Brooklyn, when a police car passed by him slowly. § 87(2)(b) turned his body away from the passing car because it was very windy outside. The police car backed up towards § 87(2)(b) and he immediately called 911. Two officers, identified through investigation as Lt. Dennis Ferber and PO Forrest Hirsch, exited the car and approached § 87(2)(b). As § 87(2)(b) spoke with IAB, Lt. Ferber asked for the phone and told § 87(2)(b) he was not free to leave (**Allegation A and B**). Lt. Ferber told § 87(2)(b) the area was drug prone, although § 87(2)(b) stated was not. Lt. Ferber also told him he looked suspicious. After asking for identification, Lt. Ferber was standing so close to § 87(2)(b) that the tips of their toes were touching while PO Hirsch was standing at his shoulder. Lt. Ferber told § 87(2)(b) to leave, but he feared an assault charge by brushing into PO Hirsch as he walked by. § 87(2)(b) expressed this concern to the officers. Lt. Ferber then hit § 87(2)(b)'s left cheek with the palm of his hand (**Allegation C**). § 87(2)(b) told the officers his father was a retired officer and Lt. Ferber replied, "I don't give a fuck" (**Allegation D**). Lt. Ferber told § 87(2)(b) that he was free to go so § 87(2)(b) proceeded to get in his friend's car to leave.

§ 87(2)(g)

§ 87(2)(b) initially chose to mediate his complaint. § 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b), 6' 2, 320 pound, Black male, employed by § 87(2)(b) provided an initial statement on February 20, 2007 (Enc. 13) and a phone statement on February 26, 2007 (Enc. 14). He provided an official statement to the CCRB on June 18, 2007 (Enc. 16-18). § 87(2)(g)

§ 87(2)(b) was outside of § 87(2)(b) in Brooklyn, waiting for his friend § 87(2)(b) to pick him up. § 87(2)(b) was not outside for more than a minute when he noticed a marked police car with two officers inside, identified through investigation as Lt. Ferber and PO Hirsch. The police car drove by slowly and § 87(2)(b) turned his back towards the car as it passed. § 87(2)(b) noticed out of the corner of his eye that the police car had stopped about 10 or 15 feet past him and started to slowly back up. § 87(2)(b) thought that the officers were going to harass him and called 911, which transferred him to the Internal Affairs Bureau (IAB). As § 87(2)(b) was on the phone, the police car pulled up to him. Lt. Ferber rolled down the window and asked who he was speaking to on the phone. Lt. Ferber and PO Hirsch both exited the car and Lt. Ferber walked right up to § 87(2)(b) approximately one foot away from him. As § 87(2)(b) continued to talk to IAB, Lt. Ferber continued to inch closer until their toes were touching. PO Hirsch asked § 87(2)(b) if there was even someone on the other line. § 87(2)(b) asked Lt. Ferber if he was free to go. Lt. Ferber replied that he was not and wanted to speak with IAB. However, § 87(2)(b) did not want to hand over his phone. Lt. Ferber told § 87(2)(b) to hang up the phone, which he did. § 87(2)(b) asked Lt. Ferber why he was being detained. Lt. Ferber responded that § 87(2)(b) fit a description of a perpetrator who had just committed a robbery. Lt. Ferber also said that the neighborhood was drug prone and a high crime area. A third officer arrived, PO 3, who was described as a White male, approximately 6 feet 2 inches tall, and with a slim build. As Lt. Ferber was in § 87(2)(b)'s face, PO Hirsch and PO 3 were pressed up against his shoulders. Lt. Ferber asked for § 87(2)(b)'s identification which he provided. At this time, § 87(2)(b) had arrived and was approximately two car lengths away from where § 87(2)(b) was standing with the officers. Lt. Ferber approached § 87(2)(b) who never exited his car, and asked if he knew § 87(2)(b). Lt. Ferber returned to § 87(2)(b) who kept telling him that what he was doing was wrong. § 87(2)(b) told Lt. Ferber that he had no right to stop him and that he was setting a bad example for

other officers. Lt. Ferber replied that no one should tell him how to do his job. § 87(2)(b) told Lt. Ferber § 87(2)(b). Lt. Ferber replied, "I don't give a fuck." § 87(2)(b) also expressed that he was scared since young black men have been killed by the police. Lt. Ferber responded that § 87(2)(b) was not a "young, black male." After arguing about the validity of the stop, Lt. Ferber hit § 87(2)(b) in his left cheek with a closed fist. As he hit § 87(2)(b) Lt. Ferber's phone started to ring. Lt. Ferber then told § 87(2)(b) to "get the hell out of here." § 87(2)(b) entered § 87(2)(b)'s car and left the location. In his initial complaint, § 87(2)(b) alleged that Lt. Ferber threatened to "lock his ass up" and also threw him against a fence to search him. However, § 87(2)(b) did not mention any of these allegations in his phone statement or his official statement. The incident lasted for about 15-20 minutes.

Results of Investigation

Witnesses Not Interviewed

Five phone calls were made to § 87(2)(b) the individual who picked up § 87(2)(b) between July 10, 2007 and August 8, 2007. On two attempts, the number did not advance to a voicemail system. On the other three attempts, a voicemail message was left. As of August 15, 2007, § 87(2)(b) has yet to respond to the messages left on his voicemail. A letter could not be sent to address because § 87(2)(b) could not provide anything more than § 87(2)(b)'s phone number. All attempts to obtain an address for § 87(2)(b) proved to be fruitless.

Officer Identification

During the incident, § 87(2)(b) called 911 before the two officers approached him. On the Command Center recording (Enc. 15), one officer was heard identifying himself as Lt. Ferber. The 69th Precinct roll call (Enc. 28-29) confirmed Lt. Ferber was working on the incident date. The roll call also indicated that PO Hirsch was his operator that day.

Officer Statements

Lt. Dennis Ferber

Lt. Dennis Ferber, a White/Hispanic male officer, was interviewed at the CCRB on August 2, 2007 (Enc. 21-22). Lt. Ferber was re-interviewed at the CCRB on September 13, 2007 for the purpose of reviewing the command center recording. .

Lt. Ferber worked from 4:00 p.m. to 12:00 a.m. on February 10, 2007. He was assigned as the special operations lieutenant and was working with PO Hirsch. They were both in uniform and were assigned to a marked patrol car. Lt. Ferber did not have any memo book entries regarding this incident (Enc. 19-20).

Lt. Ferber was driving a marked patrol car along Flatlands Avenue while PO Hirsch was in the front passenger seat. Lt. Ferber was driving slowly while passing § 87(2)(b), a drug prone location, when he noticed § 87(2)(b) standing outside. Lt. Ferber recognized § 87(2)(b) from past interactions regarding drug activity inside the building. Lt. Ferber also indicated he is the SNEU supervisor and is familiar with people involved in drug activity in that building. Lt. Ferber found it suspicious that § 87(2)(b) who has been in the company of drug dealers when transactions take place, was standing alone outside on one of the coldest days of the year. Lt. Ferber explained that § 87(2)(b) was outside of the courtyard that leads to the apartment building. The courtyard is the area where the drug transactions take place and § 87(2)(b) would stand on the outside acting as a lookout, directing buyers to where they needed to go. Lt. Ferber parked the car, then he and PO Hirsch approached § 87(2)(b) which was a joint decision made by both officers. Before they reached him, § 87(2)(b) had called the Internal Affairs Bureau (IAB) stating that two officers were harassing him. § 87(2)(b) tried handing Lt. Ferber the phone, telling him that IAB wanted to speak with him. Lt. Ferber told § 87(2)(b) to tell IAB that he would call them back later. § 87(2)(b) then hung up his phone. Lt. Ferber asked § 87(2)(b) for his identification, but did not check it for warrants. Lt. Ferber asked § 87(2)(b) why he was outside on such a cold day. He also inquired if any drug activity was going on in the building. § 87(2)(b) replied that he was just waiting for his friend to pick

him up. § 87(2)(b) was not frisked or searched at any point. A car pulled up and Lt. Ferber approached the individual. Lt. Ferber asked the driver of the car if he knew § 87(2)(b) which he did. Lt. Ferber indicated that a stop, question, and frisk report (Enc. 29) was prepared and he then let § 87(2)(b) go. The interaction lasted for approximately five minutes. Lt. Ferber called IAB immediately after the incident ended, explaining the circumstances of the stop. § 87(2)(b) seemed very agitated by the stop, but did not use profanity towards either officer. Lt. Ferber did not use profanity towards § 87(2)(b) did not threaten to arrest § 87(2)(b) and did not hit § 87(2)(b) in his face during the incident.

Lt. Ferber did not specifically tell § 87(2)(b) that he was free to leave when he in fact was at the start of the incident. Lt. Ferber did not recall ever telling § 87(2)(b) that he was not free to leave. Lt. Ferber told § 87(2)(b) that he would talk to him after he was finished speaking with IAB. At this point, the IAB command center recording was played for Lt. Ferber, who is heard on the CD specifically telling § 87(2)(b) that he was no longer free to go. Lt. Ferber did not recall saying this to § 87(2)(b). Lt. Ferber explained that he would have said that in order to get § 87(2)(b)'s information since he was going that far with his complaint with IAB. Lt. Ferber felt that § 87(2)(b)'s conduct was suspicious since it was so cold outside and he was standing in front of a drug prone location. Also, Lt. Ferber was more suspicious that § 87(2)(b) told IAB that a White officer had stopped him because he was Black, insinuating Lt. Ferber was racist. Lt. Ferber explained that in the past year, suspects have used a ploy that is typically used to scare off officers from questioning them. They would call IAB to prevent the approaching officer from performing any actions or questioning. Lt. Ferber stated that initially, § 87(2)(b) could have walked away. However, Lt. Ferber waited until he was done with IAB because he felt drug activity was taking place. Lt. Ferber did not frisk § 87(2)(b) since an officer cannot frisk an individual for drugs, only for weapons. Lt. Ferber had no suspicions that § 87(2)(b) had any weapon, therefore no frisk was performed.

PO Forrest Hirsch

PO Forrest Hirsch, a White male officer, was interviewed at the CCRB on August 3, 2007 (Enc. 25-26).

PO Hirsch worked from 1:00 p.m. to 9:35 p.m. on February 10, 2007. He was assigned as Lt. Ferber's operator and was in uniform. They were assigned to a marked patrol car, which PO Hirsch did not recall the RMP number. PO Hirsch did not have any memo book entries regarding this incident (Enc. 23-24).

PO Hirsch and Lt. Ferber were driving between § 87(2)(b) and § 87(2)(b), which is a drug prone area within the confines of the 69th Precinct. As they passed by § 87(2)(b), both officers noticed an individual, § 87(2)(b) standing alone outside the building. PO Hirsch did not recall interacting with § 87(2)(b) on prior occasions. § 87(2)(b) was dressed inappropriately; not wearing a winter jacket and wearing dress shoes. The officers circled the block two or three times before they finally approached him. The decision to approach § 87(2)(b) was a joint decision made by both Lt. Ferber and PO Hirsch. As PO Hirsch and Lt. Ferber approached him, § 87(2)(b) was already on his phone. § 87(2)(b) told the officers it was IAB. Neither PO Hirsch nor Lt. Ferber questioned § 87(2)(b) until he hung up his phone. Once he did, PO Hirsch asked § 87(2)(b) for his identification but did not check it for warrants. PO Hirsch asked § 87(2)(b) why he was standing alone outside on such a cold night. PO Hirsch also asked him if he was in any distress. § 87(2)(b) replied that he was just waiting for someone to pick him up. § 87(2)(b) seemed upset for being questioned by the officers. A car pulled up to where the officers were. Lt. Ferber went to talk to the individual in the car while PO Hirsch stayed with § 87(2)(b). PO Hirsch did not know what Lt. Ferber said to the individual. After questioning § 87(2)(b) there seemed to be no signs of distress or illegal activity. Lt. Ferber and PO Hirsch filled out a stop, question, and frisk report (Enc. 29) and let § 87(2)(b) go. At no point was § 87(2)(b) frisked or searched. The incident lasted for approximately five minutes. PO Hirsch indicated that Lt. Ferber never used profanity towards § 87(2)(b) threatened to arrest § 87(2)(b) or hit § 87(2)(b) in the face.

Officers Not Interviewed

§ 87(2)(b) indicated there was an unidentified third officer who arrived at the location. However, Lt. Ferber and PO Hirsch both indicated that no other officer arrived while questioning § 87(2)(b).

Police Documentation

The **IAB Command Center recording** (Enc. 15) revealed that Lt. Ferber identified himself while § 87(2)(b) was on the phone. § 87(2)(b) can be heard complaining that he was not free to go. At one point during the call, § 87(2)(b) asked Lt. Ferber why he was not free to leave. Lt. Ferber replied by saying something which was indecipherable and then said, “Now you are not free to go.” During his second interview, Lt. Ferber positively identified himself on the recording.

The **stop, question, and frisk report** (Enc. 29) indicated that § 87(2)(b) was questioned on the incident date for actions indicative of a drug transaction. § 87(2)(b) was not frisked and PO Hirsch prepared the report.

The **69th Precinct roll call** (Enc. 28-29) indicated that Lt. Ferber and PO Hirsch were on duty at the date and time of the incident.

Officer and Civilian CCRB History

§ 87(2)(b) has two previous complaints with the CCRB. § 87(2)(b) In his 18 years with the NYPD, Lt. Ferber has one case in which allegations against him were substantiated, case# 9301460. However, the charges against Lt. Ferber were dismissed (Enc. 33). PO Hirsch has no substantiated allegations in his one year with the NYPD (Enc. 7).

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) alleged that both Lt. Ferber and PO Hirsch exited the car and stopped him (Allegations A and B). § 87(2)(b) alleged that Lt. Ferber used physical force against him (Allegation C) and used profanity towards him (Allegation D). § 87(2)(g)

Undisputed and Disputed Facts

It is not disputed that Lt. Ferber and PO Hirsch questioned § 87(2)(b) outside of § 87(2)(b). It is not disputed that § 87(2)(b) was waiting for a ride from his friend, § 87(2)(b).

Allegations Not Pleaded

§ 87(2)(g) In his initial complaint, § 87(2)(b) alleged that Lt. Ferber threatened to “lock his ass up” and also threw him against a fence to search him. In his follow up phone statement, § 87(2)(b) failed to mention these allegations. In his official statement, § 87(2)(b) again failed to mention the threat of arrest and distinctly stated that he was not frisked or searched during the incident.

Credibility

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation B: PO Forrest Hirsch stopped § 87(2)(b)

[illegible]

Allegation D: Lt. Dennis Ferber spoke obscenely to § 87(2)(b)

_____.

Date:

Date:

Date:

Date: